

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JOSE ORTIZ,

SUMMONS

Plaintiff,

Jury Trial Demanded

-against-

Plaintiff designates NEW
YORK County as the place of
trial.

CITY OF NEW YORK; Police Officer CARLOS PAGAN,
shield no. 2218; and NYPD Officers JOHN and JANE DOE
1 through 10, all defendants individually and in their official
capacities,

The basis of venue is:
CPLR § 504(3)

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
January 15, 2021

Katherine E. Smith, Esq.
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TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. CARLOS PAGAN, Shield no. 2218, Det. Boro Man No Homicide Sq., 120 East 119th Street,
Manhattan, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JOSE ORTIZ,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer CARLOS PAGAN, shield no. 2218; and NYPD Officers JOHN and JANE DOE 1 through 10, all defendants individually and in their official capacities,

Defendants.

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COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

PLAINTIFF JOSE ORTIZ, by PLAINTIFF'S attorney, the LAW OFFICE OF KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

FACTS

1. PLAINTIFF JOSE ORTIZ, is an Hispanic male and has been at all relevant times a resident of New York County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendant CARLOS PAGAN, shield no. 2218, individually and in his official capacities; and NYPD Defendants John & Jane Doe 1 through 10 (“Doe Defendants”) were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. PLAINTIFF complied with all conditions precedent to suit.

9. The City of New York is liable for all acts of the defendants under the theory of respondeat *superior*.

10. Plaintiff demands a jury trial.

STATEMENT OF FACTS

11. On or about October 28, 2019 at or around 4:00 p.m., PLAINTIFF was lawfully within the vicinity of the 20th police precinct, located at 120 W 82nd Street, New York, New York 10024.

12. Several unidentified New York City Police Officers, including defendants DOE defendants unlawfully lured PLAINTIFF into the 20th police precinct under false pretenses.

13. The Defendant Officers, including defendant PAGAN, falsely accused PLAINTIFF of being “look-out” in a robbery that had occurred on October 17, 2019.

14. Although the Defendant Officers had no probable cause to believe that PLAINTIFF had committed any crimes or offenses, nor was he identified as being involved in any way, Defendants, including PAGAN, placed PLAINTIFF into handcuffs and under arrest.

15. At the precinct the officers, including defendant PAGAN, falsely spread false information implicating PLAINTIFF of being taken into custody and charged with two counts of robbery. Moreover, members of the NYPD falsely reported to news outlets that PLAINTIFF committed crimes and offenses.

16. Notwithstanding the fact that there was no basis for police to believe that claimant was involved in any crimes or offenses, police falsely spread information implicating claimant, committing libel, slander, and defamation, causing claimant to suffer reputational damage, *inter alia*.¹

17. Neither PAGAN nor the DOE defendants observed PLAINTIFF violate any laws / ordinances.

¹ <https://www.westsiderag.com/2019/10/28/suspected-lookout-in-scaffolding-assault-arrested>

18. The allegations made by Defendant PAGAN and DOE defendants publically were false, and the defendants knew - or should have known - them to be false at the time the defendants made the allegations.

19. From the precinct, officers transported PLAINTIFF to Central Booking.

20. PLAINTIFF was eventually released from Central Bookings without seeing a judge after the District Attorney's Office declined to prosecute his case.

21. PLAINTIFF suffered damage as a result of defendants' actions. PLAINTIFF was deprived of liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, slander, libel, humiliation, and reputational damage.

CLAIM ONE
Under State and Federal Law
UNLAWFUL SEARCH AND SEIZURE

22. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

23. As a result of the aforesaid conduct by defendants, PLAINTIFF's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

CLAIM TWO
Under State and Federal Law
NEGLIGENCE

24. PLAINTIFF repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

25. Defendant City of New York for the oversight of its agents, servants, and/or employees, who include officials and staff at NYPD.

26. The City is liable for damages caused by the negligent or wrongful acts of its agents, servants, and/or employees acting within the scope of their employment.

27. NYPD officials and staff have a duty to corroborate information prior to arresting civilians.

28. Furthermore, NYPD staff and officials knew - or should have known - to not disclose uncorroborated information regarding the status of PLAINTIFF's involvement in a criminal proceeding.

29. NYPD officials and staff breached their duty to protect PLAINTIFF from an unnecessary and unlawful detention.

30. As a result of these actions and inactions by NYPD police officers and officials, PLAINTIFF suffered loss of life's pleasures, severe emotional distress, and was subjected to handcuffing and other physical restraints without probable cause.

CLAIM THREE
Under State and Federal Law
FALSE ARREST

31. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

32. Defendant police officers arrested PLAINTIFF in the absence of probable cause and without a valid warrant.

33. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned,

detained and confined. The aforesaid actions by the defendants constituted a deprivation of the PLAINTIFF's rights.

CLAIM FOUR
Under State and Federal Law
MALICIOUS ABUSE OF PROCESS

34. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

35. The individual defendants issued legal process to place PLAINTIFF under arrest.

36. The Municipal Defendants arrested PLAINTIFF in order to obtain collateral objectives outside the legitimate ends of the legal process.

37. The Municipal Defendants acted with intent to do harm to PLAINTIFF without excuse or justification.

38. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

CLAIM FIVE
Under Federal Law
FAILURE TO INTERVENE

39. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

40. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such

conduct, had a duty to intervene and prevent such conduct and failed to intervene.

41. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

42. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM SIX
Under Federal Law
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

43. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

44. Defendants created false evidence against PLAINTIFF.

45. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

46. Defendants misled the prosecutors by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

47. In creating false evidence against PLAINTIFF, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFF's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

48. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, was put in fear for PLAINTIFF'S safety, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

CLAIM SEVEN
Under State Law
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

49. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

50. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

51. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

52. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

53. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to PLAINTIFF.

54. As a result of the aforementioned conduct, PLAINTIFF suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

CLAIM EIGHT
Under State Law
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

55. PLAINTIFF repeat and reallege each and every allegation as if fully set forth herein.

56. By reason of the foregoing, each Defendant was negligent in committing conduct that inflicted emotional distress upon PLAINTIFF.

57. The negligent infliction of emotional distress by these Defendants was unnecessary and unwarranted in the performance of their duties.

58. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon PLAINTIFF.

59. The Defendant employers NYPD and the CITY, are responsible for their wrongdoings of their employees and agents under the doctrine of *respondeat superior*.

60. As a result of these actions and inactions by NYPD, the CITY, Individual Defendants and Defendant's staff and officials, PLAINTIFF suffered serious personal injuries, economic injuries, pain and suffering, loss of life's pleasures, and emotional distress, inter alia.

CLAIM NINE
Under State Law
ASSAULT and BATTERY

61. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

62. Defendants' aforementioned actions placed PLAINTIFF in apprehension of imminent harmful and offensive bodily contact.

63. Defendant police officers touched PLAINTIFF in a harmful and offensive manner.

64. Defendant police officers did so without privilege or consent from PLAINTIFF.

65. As a result of defendants' conduct, PLAINTIFF has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

CLAIM TEN
Under Federal Law
DEPRIVATION OF FEDERAL RIGHTS

66. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

67. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

68. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

69. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

70. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

71. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM ELEVEN
Under State Law
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

72. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

73. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

74. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

75. Due to the negligence of the defendants as set forth above, PLAINTIFF suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation, shock, fright, and loss of freedom.

CLAIM TWELVE
Under State Law
DEFAMATION, LIBEL AND SLANDER

76. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

77. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

78. Members of NYPD including Deputy Inspector Malin made false statements to the media, published this information to a third party without privilege or authorization; with fault amounting to at least negligence; that caused PLAINTIFF special harm and defamation per se.

79. The City of New York is liable for the acts of the police officers, including Malin and Pagan, under the theory of respondeat superior.

CLAIM THIRTEEN
Under Federal Law
MUNICIPAL LIABILITY

80. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

81. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

82. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officers' arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to cover up police misconduct.

83. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFF.

84. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

85. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the PLAINTIFF as alleged herein.

86. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

87. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFF's constitutional rights.

88. The acts complained of deprived the PLAINTIFF of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at

trial;

- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
January 15, 2021



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